

## 25SMCV04188 25SMCV04188

County: los-angeles

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### TENTATIVE RULING

August 13, 2026

25SMCV04188 (Nah v. Nobu Malibu LLC, et. al.)

### RELEVANT BACKGROUND

#### Procedural Background

On August 12, 2025, plaintiff Susan Nah (Plaintiff) filed her initial Complaint against defendants Nobu Malibu, LLC (Nobu), Nobu Restaurant Group LLC (NRG), Meir Teper (Teper), Ryan DeCuffa (DeCuffa), Speedy Doe, and Does 1-50 (collectively, Defendants).

On September 11, 2025, Plaintiff filed an amendment to the Complaint (fictitious/ incorrect name) regarding defendant "Speedy Doe" after having discovered the true name of the defendant to be Espiridion Soto-Hernandez (Hernandez).

On December 30, 2025, Plaintiff improperly attempted to file a first amended complaint without leave of Court. Plaintiff was not entitled to amend without leave of Court since some Defendants had already answered the Complaint. (Code Civ. Proc., § 472; See Answer filed 10/22/25 by Nobu, NRG, and Hernandez.)

On January 13, 2026, the Court sustained Defendants' demurrers to the complaint with leave to amend.

(1/13/26 Minute Order.)

On April 9, 2026, the Court denied Defendants' motion to dismiss.

On

May 14, 2026, the parties filed a joint stipulation, and the Court ordered as follows: "Plaintiff is granted Plaintiff leave to file and serve a Third Amended Complaint limited solely to adding Ryan DeCuffa and DOES 31 through 40 to the caption of the Tenth Cause of Action for Work Environment Harassment. No other changes to the Second Amended Complaint are permitted under this Order. Plaintiff shall file and serve the Third Amended Complaint no later than May 19, 2026. (5/14/26 Stipulation and Order.)

On May 19, 2026, Plaintiff filed her third amended complaint (TAC) against Nobu, Teper, DeCuffa, Hernandez, and Adrian Ramirez (Ramirez).

Plaintiff alleges twenty-one causes of action: (1) Failure to Provide Rest Breaks; (2) Failure to Provide Meal Breaks; (3) Waiting Time Penalties; (4) Failure to Provide Accurate Itemized Wage Statements; (5) Sex/Gender Discrimination; (6) Disability/Perceived Disability Discrimination; (7) FMLA/CFRA Discrimination; (8) Sexual Harassment; (9) Quid Pro Quo Sexual Harassment; (10) Work Environment Harassment; (11) Retaliation (Gov. Code, § 12940(H)); (12) Retaliation (Gov. Code, § 12945.2(K)); (13) Failure to Prevent Harassment, Discrimination And Retaliation; (14) Retaliation [Labor Code, §§ 98.6, 1102.5]; (15) Failure to Provide Reasonable Accommodation; (16) Failure to Engage in Good Faith Interactive Process; (17) Battery; (18) Sexual Battery; (19) Assault; (20) Unfair and Unlawful Business Practices; and (21) Wrongful Termination.

#### INSTANT MOTION

On June 3, 2026, DeCuffa filed a demurrer to the tenth cause of action alleged in the TAC. Plaintiff filed an opposition, and DeCuffa filed a reply.

On June 3, 2026, Teper file a demurrer to the first, second, third, and fourth causes of action alleged in the TAC. Plaintiff filed an opposition, and Teper filed a reply.

## MEET AND CONFER

The Court finds that DeCuffa has satisfied the meet-and-confer requirement. (See Marko Decl.)

The Court finds that Teper has satisfied the meet-and-confer requirement. (See Marko Decl.)

## DISCUSSION

I.

DECUFFA

DEMURRER TO TAC

A.

Tenth Cause of Action – Harassment

Under Government Code section 12940, subd. (j)(1), it is an unlawful employment practice, “[f]or an employer...or any other person, because of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, reproductive health decision making, or veteran or military status, to harass an employee, an applicant, an unpaid intern or volunteer, or a person providing services pursuant to a contract. Harassment of an employee...shall be unlawful if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action....” (Gov. Code, § 12940, subd. (j)(1).)

To prevail, a plaintiff must prove they were subjected to “offensive comments or other abusive conduct” that is (1) based on a “protected characteristic” and (2) “sufficiently severe or pervasive as to alter the conditions of [his] employment.” (Doe v. Dept. of Corrs. & Rehab. (2019) 43 Cal.App.5th 721, 736.) The conduct must be objectively severe or pervasive. (Ibid.) “Factors to consider in this context include the frequency of the conduct, its severity, whether it is physically threatening or humiliating, and whether it unreasonably interferes with the employee’s work performance.” (Ibid.)

Here,

DeCuffa argues that the tenth cause of action fails to state a claim against him because there are no facts showing that he engaged in harassing conduct because of a protected characteristic; Plaintiff alleges only personnel management actions that do not constitute harassment as a matter of law; and the TAC does not allege conduct by DeCuffa that is severe or pervasive. DeCuffa states that the allegations in the TAC pertaining to him are limited:

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In or around 2021, Defendant hired new manager Ryan DeCuffa. (TAC ¶ 28.)

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Plaintiff alleges that Ryan did not allow her to do things that he allowed others to do, such as using cell phones, eating at their stations, or trying new dishes, and Plaintiff would be reprimanded for their actions "as she had the most seniority." (TAC ¶ 29.)

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On August 20, 2023, a "hurricane warning" was issued (i.e., tropical storm Hilary), making Plaintiff uncomfortable. When Plaintiff and her coworker (also female) expressed their concerns to Mr. DeCuffa, he told them that they could go home but then reprimanded plaintiff for leaving early, stating it "didn't look good." Plaintiff claims she was singled out because Mr. DeCuffa spoke to her but not her coworker (also female). (TAC ¶ 30.)

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Around November 2023, DeCuffa told Plaintiff she was being written up as a part of the team but later found out she was the only one written up because "she was the most senior employee in her team." (TAC ¶ 36.)

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A November 2023 remark by DeCuffa when Plaintiff burned her hand: "Is this going to be a reoccurring thing from you?" (TAC ¶ 37.)

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In May 2023 DeCuffa advised Plaintiff her training for a promotion would be delayed due to her taking vacation time. (TAC ¶ 39.)

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Plaintiff was reprimanded by DeCuffa in January or February 2024 for taking food from the restaurant despite other unnamed employees doing the same. (TAC ¶ 42.)

Plaintiff's manager (again, unclear if this is attributable to Mr. DeCuffa) told her she should not hold a box a certain way after injuring her hand. (TAC ¶ 40.)

An unnamed valet told Plaintiff that "he heard Mr. DeCuffa say he wanted to get rid of Ms. Nah" (TAC ¶ 45.)

The Court agrees with DeCuffa and finds that the TAC fails to allege facts sufficient to state a cause of action against DeCuffa for harassment under Government Code section 12940(j)). There are no facts showing that he engaged in harassing conduct because of a protected characteristic. The allegations cited by Plaintiff in opposition are entirely conclusory and do not allege any facts in support of Plaintiff's contentions. (See TAC ¶ 46, 168, 171, and 174.) While Plaintiff alleges that she belongs to protected classes (sex/gender, disability, and CFRA-leave status), there are no facts alleged that show that DeCuffa engaged in harassing conduct because of the alleged characteristics. (Id.)

The Court is not persuaded by Plaintiff's argument regarding the totality of the personnel-management conduct. (See TAC ¶ 29, 30, 36, 39, 40, 42, 45.) As DeCuffa points out, Plaintiff pleads only personnel-management actions (managerial criticisms, enforcement of workplace rules, and scheduling/discipline) that are not harassment as a matter of law and, in any event, are not alleged to have been undertaken because of a protected status. (See TAC ¶ 29, 30, 36, 39, 40, 42, 45; Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 707, quoting Reno v. Baird (1998) 18 Cal.4th 640, 646 ["[H]arassment consists of conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives.... [¶] ... [¶] ... [C]ommonly necessary personnel management actions ... do not come within the meaning of harassment.... These actions may retrospectively be found discriminatory if based on improper

motives, but in that event the remedies provided by the FEHA are those for discrimination, not harassment.... This significant distinction underlies the differential treatment of harassment and discrimination in the FEHA."].)

Further, there are no facts alleged that show that DeCuffa's alleged conduct was objectively severe or pervasive. Plaintiff's opposition does not point to any specific allegations in the TAC, and Plaintiff is incorrect that the sufficiency of allegations regarding severity and pervasiveness cannot be considered on demurrer. As DeCuffa argues in reply, the isolated remarks and personnel actions alleged in TAC attributed to DeCuffa across several years are occasional, isolated, sporadic, or trivial. And there are no facts showing that any conduct attributed to DeCuffa was physically threatening or humiliating or interfered with Plaintiff's work performance. Even accepting the totality-of-the-circumstances framing Plaintiff asserts, a multi-year collection of ordinary reprimands and non-derogatory comments does not describe a workplace "permeated with discriminatory intimidation, ridicule, and insult." (Bailey v. San Francisco District Attorney's Office (2024) 16 Cal.5th 611, 628.)

The Court further finds that leave to amend is not appropriate because Plaintiff has not shown that it is reasonably possible to cure the defects through amendment. (See Opp at p. 7:21-27.)

Accordingly, DeCuffa's demurrer to the tenth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

II.

TEPER

DEMURRER

A. First and Second Causes of Action -

Failure to Provide

Rest and Meal Breaks

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employer must give its employees a 30-minute meal within the first 5 hours of their shift and rest breaks. (Lab. Code §§ 226.7(a), 512(a); IWC Wage Order No. 4-2001.) An employer satisfies this duty "if it relieves its employees of all duty, relinquishes control over their activities and permits them a reasonable

opportunity to take an uninterrupted thirty minute break, and does not impede or discourage them from doing so.” (Cleveland v. Groceryworks.com, LLC (N.D. Cal. 2016) 200 F.Supp.3d 924, 946.) As such, “an employee must show that he was forced to forego his meal [and rest] breaks as opposed to merely showing that he did not take them regardless of the reason.” (White v. Starbucks Corp. (N.D. Cal. 2007) 497 F.Supp.2d 1080, 1089.)

#### Individual Liability Under Labor

##### Code

Labor Code section 558.1 provides, “Any employer or other person acting on behalf of an employer, who violates, or causes to be violated, any provision regulating minimum wages or hours and days of work in any order of the Industrial Welfare Commission, or violates, or causes to be violated, Sections 203, 226, 226.7, 1193.6, 1194, or 2802, may be held liable as the employer for such violation.” (Lab. Code, § 558.1, subd. (a).) “For purposes of this section, the term ‘other person acting on behalf of an employer’ is limited to a natural person who is an owner, director, officer, or managing agent of the employer, and the term ‘managing agent’ has the same meaning as in subdivision (b) of Section 3294 of the Civil Code.” (Id., subd. (b).)

##### To

be held personally liable as an “other person acting on behalf of an employer” under Labor Code section 558.1, an owner of the employer must have been personally involved in the purported violation or had sufficient participation in the activities of the employer such that the owner may be deemed to have contributed to the violation. (Usher v. White (2021) 64 Cal.App.5th 883, 896-897.)

#### Alter-Ego Liability

##### To

recover on an alter-ego theory, a plaintiff must allege sufficient facts to show a unity of interest and ownership and an unjust result if the corporation is treated as the sole actor. (Vasey v. California Dance Co. (1977) 70 Cal.App.3d 742, 749.) An allegation that a person owns all of the corporate stock and makes all of the management decisions is insufficient to cause the court to disregard the corporate entity. (Meadows v. Emmett & Chandler (1950) 99 Cal.App.2d 496, 499; See also Leek v. Cooper (2011) 194

Cal.App.4th 399, 415.)

The Court finds that the TAC fails to allege facts sufficient to establish the first or second causes of action alleged against Teper. Teper correctly argues that employees cannot generally sue an officer of their employer for Labor Code violations and that Labor Code section 558.1 does not impose personal liability on him because there are no factual allegations to support the conclusory assertion that Teper is an "owner, director, officer, or managing agent" of Nobu Malibu, LLC, or that he was personally involved by forming, ratifying and/or implementing policies and actions that led to violations. (See TAC ¶ 15-16, 20-22.) The Court also agrees with Teper that the TAC does not identify a specific company policy or allege facts showing that an affirmative action by Teper beyond his status as an owner, director, or officer that caused specific violations. (*Espinoza v. Hepta Run, Inc.* (2022) 74 Cal. App. 5th 44, 58, review denied (Apr. 27, 2022) [defendant was the sole owner who admitted he had approved a policy regarding payment of truck drivers that violated various provisions of the Labor Code] and *Usher*, 64 Cal. App. 5th 883.) Also, paragraphs 60 and 66 of the TAC identified by Plaintiff in opposition do not pertain to Teper specifically and instead refer to "Defendants" collectively. (TAC ¶ 60, 66; Opp at p. 5:17-25.)

The case cited by Plaintiff in opposition, *Iloff v. LaPaille* (2025) 117 Cal. App. 5th 404, 422, does not assist her. In *Iloff*, the court held, "we interpret the word 'may' in section 558.1 as reflecting a recognition by the Legislature that the party prosecuting the wage violation may not need to pursue liability in the event the employer satisfies any outstanding judgment. It does not grant judicial discretion in imposing liability." (*Iloff*, 117 Cal. App. 5th at p. 422.) Additionally, the court found that the trial court erred in finding that the CEO was not personally liable because the CEO was the "property manager during the relevant time and was in 'constant contact' with [the plaintiff], providing him 'instructions, directions and approvals for commencing and completing the work [he] performed.'" (*Ibid.*) Like *Espinoza* and *Usher*, *Iloff* confirms Teper's position that mere status as an owner or officer is insufficient and that liability requires affirmative conduct causing the violation. No such facts have been alleged in the TAC with respect to Teper to support the conclusory assertions referenced by Plaintiff in opposition.

Additionally, the Court agrees with Teper



that the alter-ego allegations (TAC ¶ 13-14) are conclusory, and Plaintiff does not allege any facts showing a unity of interest and ownership or an unjust result if the corporation is treated as the sole actor. (Meadows, 99 Cal.App.2d at 499 and Leek, 194 Cal.App.4th at 415.) The Court is not persuaded by Plaintiff's argument in opposition that paragraph 14(i) alleges sixteen categories to provide an independent basis for Teper's liability as to all four wage-and-hour causes of action. It does not. Again, Plaintiff merely lists the factors courts consider in an alter-ego analysis without alleging any facts whatsoever. (See TAC ¶ 14(i).) Teper is correct that this is inadequate to survive demurrer.

The Court further finds that leave to amend is not appropriate because Plaintiff has not shown that it is reasonably possible to cure the defects through amendment. The opposition does not address leave to amend. (See Opp. generally.)

Accordingly, Teper's demurrer to the first and second causes of action is SUSTAINED WITHOUT LEAVE TO AMEND.

#### A. Third Cause of Action - Waiting Time Penalties

It is well-settled policy in California that all of an employee's earned wages must be fully and promptly paid. (Smith v. Superior Court (2006) 39 Cal.4th 77, 82.) Failure to promptly pay wages results in a waiting time penalty whereby the wages continue to accrue up to a maximum of 30 days. (Lab. Code § 203.)

The Court finds that Plaintiff fails to allege sufficient facts to state a cause of action for Waiting Time Penalties (Labor Code §§ 201/203) against Teper. For the reasons set forth above regarding the first and second causes of action, the TAC fails to allege any facts to impose individual liability on Teper for the alleged Labor Code violations under Labor Code 558.1 or alter-ego liability. There are no factual allegations that show Teper was involved by forming, ratifying and/or implementing policies and actions that led to violations. (See TAC ¶ 15-16, 20-22.) Nor are there any facts, rather than bare conclusory assertions, showing a unity of interest or an inequitable result from treatment of the corporation as the sole actor. (TAC ¶ 13-14.) In addition, there are no factual allegations concerning the waiting time penalties specifically attributable to Teper. (See TAC ¶ 47, 70-76.) Paragraphs 47 and 73 of the TAC referenced by

Plaintiff in opposition do not pertain to Temper specifically and instead refer to "Defendants" collectively. (See TAC ¶ 47, 73; Opp. at p. 5:26-26, 6:1-5.)

The

Court further finds that leave to amend is not appropriate because Plaintiff has not shown that it is reasonably possible to cure the defects through amendment. The opposition does not address leave to amend. (See Opp generally.)

Accordingly,

Teper's demurrer to the third cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

#### A. Fourth Cause of Action - Failure to Provide Accurate Itemized Wage Statements

Labor Code section 266 provides that

an employer shall furnish to their employee, either as a detachable part of the check, draft, or voucher paying the employee's wages, or separately if wages are paid by personal check or cash, an accurate itemized statement in writing containing specific information outlined in subdivision (a) of the code section. (Lab. Code § 266.)

Additionally, the employer "shall afford current and former employees the right to inspect or receive a copy of records pertaining to their employment, upon reasonable request to the employer." (Lab. Code, § 226, subd. (b).) "An employer who receives a written or oral request to inspect or receive a copy of records pursuant to subdivision (b) pertaining to a current or former employee shall comply with the request as soon as practicable, but no later than 21 calendar days from the date of the request." (Id., subd. (c).)

"An employee suffering injury as a result of a knowing and intentional failure by an employer to comply with subdivision (a) is entitled to recover the greater of all actual damages or fifty dollars (\$50) for the initial pay period in which a violation occurs and one hundred dollars (\$100) per employee for each violation in a subsequent pay period, not to exceed an aggregate penalty of four thousand dollars (\$4,000), and is entitled to an award of costs and reasonable attorney's fees." (Id., subd. (e)(1).) "An employee is deemed to suffer injury for purposes of this subdivision if the employer fails to provide a wage statement." (Lab. Code, § 226, subd. (e)(2)(A).)

The Court finds that Plaintiff fails to allege sufficient facts to state a cause of action for Failure to Provide Itemized Wage Statements (Labor Code § 226) against Teper. For the reasons set forth above regarding the first and second causes of action, the TAC fails to allege any facts to impose individual liability on Teper for the alleged Labor Code violations under Labor Code 558.1 or alter-ego liability. There are no factual allegations that show Teper was involved by forming, ratifying and/or implementing policies and actions that led to the alleged violations. (See TAC ¶¶ 15-16, 20-22.) Nor are there any facts, rather than bare conclusory assertions, showing a unity of interest or an inequitable result from treatment of the corporation as the sole actor. (TAC ¶¶ 13-14.) Plaintiff only alleges that "Defendants" failed to provide accurate itemized statements and offers bare assertions without including any factual allegations to link Temper to the alleged violation. (TAC ¶¶ 77-83.) Paragraphs 80 and 81 of the TAC identified by Plaintiff in opposition do not pertain to Temper specifically and instead refer to "Defendants" collectively. (See TAC ¶¶ 80, 81; Opp. at p. 6:6-14.)

The Court further finds that leave to amend is not appropriate because Plaintiff has not shown that it is reasonably possible to cure the defects through amendment. The opposition does not address leave to amend. (See Opp generally.)

Accordingly, Teper's demurrer to the fourth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

Moving defendants may have thirty (30) days in which to file and serve an answer to the TAC.

Moving parties to give notice.